

25SMCV06475 25SMCV06475

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These are similar special motions to strike brought in two

similar cases. Plaintiff in these cases

is a tenant who sues the former landlord and property manager. There was a previous UD case in which the landlord successfully evicted plaintiff.

In the instant case, plaintiff claims a number of torts. The underlying alleged facts are that on

November 4, 2025, defendant wrote and delivered a letter asking to talk to

plaintiff concerning various complaints that defendant had received. This was a first step toward investigating issues that could lead to a Measure RR letter and potential eviction. The eventual Measure RR letter was written on official letterhead and was addressed to "Semen." Measure RR is a part of the Santa Monica rent

control structure. It extends protection

against eviction in a number of ways. It

requires landlords to give tenants written notice to correct a lease violation

before starting eviction proceedings, and also limits the landlord's ability to

evict tenants who are terminally ill or who have lived in the unit for at least

five years or who are disabled or who are at least 62. The notice here accused plaintiff of abusing,

harassing, and threatening others, which would be cause for eviction if

true. It accused plaintiff of being a

nuisance. On December 5, defendants sent

plaintiff a cure or quit notice. The

notice was allegedly verified by management.

Plaintiff also claims that defendant disseminated the letter to the

Housing Authority and to two individuals: Dominique Thurman and Jonathan

Campbell. Plaintiff alleges that the

foregoing conduct constituted defamation by discussing the alleged behaviors

without plaintiff's permission and communicating the accusations to

others. Plaintiff also claims that

defendants did not respond to her requests for accommodation made by herself

and her representative Jonathan Campbell to have meetings through Zoom or a

similar method or to use Zoom to inspect the premises rather than conduct a physical inspection. She also alleges that the foregoing conduct constituted intentional infliction of emotional distress. The third cause of action is for negligence, and again, it is based on the same set of facts. The fourth cause of action is for the public disclosure of private facts. It is based on the same allegations as set forth above—there is no additional detail. The fifth cause of action is for intrusion into private affairs, again by discussing the issues raised in the Measure RR notice and failing to accommodate plaintiff's requests. The sixth and final cause of action is for false light, and is again based on the same set of facts. The other case is similar, but it alleges sexual harassment. However, the supporting facts are the same.

A Special Motion to Strike (SMS) is a California response to what the Legislature concluded were a series of lawsuits designed to chill speech. The underlying problem was that a person would engage in free speech—such as picketing or the like—and would be met with a lawsuit claiming that the speech was tortious in some way. True, the defendant would ultimately prevail if the speech was truly protected speech, but only after litigating the issue—potentially through summary judgment or trial. In the meantime, the defendant would be forced to run the litigation gauntlet and retain counsel. The effect, the Legislature concluded, was that people were afraid to engage in protected speech or activity due to this improper and heavy-handed mis-use of the legal process. The response was Code of Civil Procedure section 425.16—the Special Motion to Strike. (It is often referred to as an anti-SLAPP motion. The court prefers SMS.) This is a very powerful tool that is given to defendants who believe that they are being sued for engaging in this kind of constitutionally-protected conduct. It allows an early resolution of the case on the merits. The motion is a speaking motion, meaning that the court goes beyond the allegations in the complaint, and once brought, the motion freezes discovery. A plaintiff is generally not allowed to amend if the motion is successful, and the motion—win or lose—is appealable. A successful defendant is entitled to recover attorneys' fees as a matter of right as well. The same is not true of a party successfully defeating the motion unless the motion was brought in a way that (essentially) violates CCP section 128.5.

The SMS sets forth a two step process to balance the desire to get a resolution early against the need to be sure that due process is maintained. The first step is to

determine whether the suit really alleges a tort based on the exercise of a constitutionally protected right. After all, most torts having nothing to do with the constitution. The burden on establishing this prong lies with the defense, and the court looks primarily to the complaint to answer the question. The court can look beyond the complaint, but generally, plaintiff is the master of the complaint and a plaintiff is entitled to plead around constitutionally protected conduct. Further, an allegation of constitutionally protected activity will not trigger the statute if it is only background. It has to be a part of the charging allegations—meaning it needs to form a part of the actual basis for the cause of action. If the defendant can meet the first prong, then the burden shifts to the plaintiff to defeat the motion under the second prong. The statute states that it is up to the plaintiff to show a reasonable probability of success. But those words are deceiving. Recall that this is the start of the case. The plaintiff has not had the benefit of discovery, and the point of the SMS is not to do away with the fact-finder's role. Rather, this prong has been interpreted as a test to see whether the case has "minimal merit," which is a standard akin to that needed to oppose successfully a motion for summary judgment. If the plaintiff can present evidence—not just allegations—that (if believed) would lead to a plaintiff's verdict, that is sufficient. The court can consider the evidence, but it is not to weigh the evidence. If there is a triable issue of fact, the motion fails.

The court turns to the first prong. The allegations there are that Leguizamon, who was employed by Community Corporation as a Property Supervisor for the relevant property, wrote to plaintiff to request a call to discuss certain complaints that had been received. He provided his contact information. He mistakenly began the letter "Dear Semen."

The defense has put in evidence that this was a mistake. He took the heading from a recent letter he had written to a tenant whose first name was "Semen" (pronounced Simon). Plaintiff did not call, so a formal Measure RR letter was sent to plaintiff. Under that measure, such a letter is required before eviction proceedings can begin. That ultimately led to an inspection of plaintiff's residence in December 2025, which ultimately led to a new Measure RR letter and then eviction proceedings. Therefore, the November letter was a predicate to the start of potential

eviction procedures, which is constitutionally protected. The same is true of the December cure or quit notice.

All of that conduct is protected. Measure RR is the predicate that leads to an unlawful detainer action. That is an action in court, and as such, it involves the right to petition government. Suing someone for taking a required first step toward bringing a legal action is a suit that does involve a constitutionally protected right.

While plaintiff does not allege that the UD action itself is the wrong, the things about which she does sue are necessary predicates to that action. (That is true even if the ultimate grounds for the UD action were different from those in the original Measure RR notice. The fact is that the original notice was a predicate to suit; the fact that the landlord ultimately brought the UD on different grounds after learning more information does not change the character of the claim.) That is sufficient, and the burden shifts.

The court notes that while it is plaintiff's burden to present evidence, the defense here has raised the litigation privilege codified in Civil Code section 47(b). That statute makes conduct in litigation absolutely privileged as against tort claims (other than malicious prosecution). It is often called the "absolute" privilege, although pre-litigation conduct is not really absolutely privileged. Even so, it is very potent and does extend to core conduct necessary to pursue an eventual claim in court. Here, plaintiff has not opposed the motion, so there is no evidence to support her claims at all. But even if there were, pretty much everything done was done in furtherance of the eventual or contemplated UD claim. The defamation assumes a false statement, but there is no evidence that any statement was false. (Further, to the extent that the statement was an allegation of complaints by others, if the defendant really received the complaints, the statements are true.)

The other causes of action are all derivative of the fact that defendant was starting to take steps that eventually led to plaintiff's eviction. Further, it is possible that plaintiff's action here is barred by res judicata from the UD action, but even if not plaintiff has failed to show minimal merit or how her claims will survive the section 47 privilege.

Because defendant has demonstrated that the lawsuits involve

constitutionally protected conduct, and because plaintiff has presented no evidence suggesting that there is even a triable issue of fact on the merits, the motions succeed. Therefore, the Special Motions to Strike are GRANTED.

The complaint is STRICKEN.

Defendants will prepare a written order for the court's signature.